

Opinion of the Court

fective functioning of government.” *Fitzgerald*, 457 U. S., at 751.

As for the Government’s assurances that prosecutors and grand juries will not permit political or baseless prosecutions from advancing in the first place, those assurances are available to every criminal defendant and fail to account for the President’s “unique position in the constitutional scheme.” *Id.*, at 749. We do not ordinarily decline to decide significant constitutional questions based on the Government’s promises of good faith. See *United States v. Stevens*, 559 U. S. 460, 480 (2010) (“We would not uphold an unconstitutional statute merely because the Government promised to use it responsibly.”). Nor do we do so today.

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As for the dissents, they strike a tone of chilling doom that is wholly disproportionate to what the Court actually does today—conclude that immunity extends to official discussions between the President and his Attorney General, and then remand to the lower courts to determine “in the first instance” whether and to what extent Trump’s remaining alleged conduct is entitled to immunity. *Supra*, at 624–625, 628, 630.

The principal dissent’s starting premise—that unlike Speech and Debate Clause immunity, no constitutional text supports Presidential immunity, see *post*, at 660–662 (opinion of SOTOMAYOR, J.)—is one that the Court rejected decades ago as “unpersuasive.” *Fitzgerald*, 457 U. S., at 750, n. 31; see also *Nixon*, 418 U. S., at 705–706, n. 16 (rejecting unanimously a similar argument in the analogous executive privilege context). “[A] specific textual basis has not been considered a prerequisite to the recognition of immunity.” *Fitzgerald*, 457 U. S., at 750, n. 31. Nor is that premise correct. True, there is no “Presidential immunity clause” in the Constitution. But there is no “‘separation of powers clause’” either. *Seila Law*, 591 U. S., at 227. Yet that doc-